

CLIENT SERVICES AGREEMENT

This Client Services Agreement (“Agreement”) is entered into as of the ____ day of _____, 2025 (“Effective Date”), by and between **DispoTree LLC**, a Delaware limited liability company, with its principal place of business located at 8 The Green, Ste R, Dover, DE 19901 (“DispoTree”), and _____ (“Wholesaler”), with its principal place of business at _____. DispoTree and Wholesaler are referred to herein individually as a “Party” and collectively as the “Parties.”

RECITALS

WHEREAS, DispoTree provides professional marketing, coordination, and concierge services to assist wholesalers in listing, marketing, and disposing of properties through third-party online platforms and marketplaces;

WHEREAS, Wholesaler desires to engage DispoTree to assist in the marketing and promotion of certain real property in connection with Wholesaler’s lawful wholesaling activities;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the Parties agree as follows:

ARTICLE I: SCOPE OF SERVICES

Section 1.1 — Services Provided by DispoTree

DispoTree agrees to provide the following services (“Services”):

- Facilitate the listing of properties on approved third-party online platforms, including but not limited to Hubzu, Xome, Unreal Estate, and others selected by DispoTree.

- Prepare and submit required marketing materials, including descriptions, documentation, and photographs, ensuring compliance with each platform's standards.
- Provide relevant property details and supporting documentation to third-party platforms to enable marketing and sale of applicable properties.
- Coordinate directly with third-party platforms to optimize exposure, compliance, and performance of listed properties.

Section 1.2 — Responsibilities of Wholesaler

Wholesaler agrees to:

- Provide complete, accurate, and timely property information, including title documentation, marketing agreements, and seller authorizations.
- Ensure all submissions comply with applicable laws and platform requirements.
- Authorize DispoTree to communicate with third-party platforms on Wholesaler's behalf.
- Indemnify DispoTree for damage or liability resulting from inaccurate information or non-compliant submissions.
- Provide the names and real estate license numbers of all individuals acting under Wholesaler.
- Ensure that the purchase contract expiration date is at least fifteen (15) days beyond the initial submission date to DispoTree.
- Verify that the seller named in the purchase contract is the record owner of the property through email, recorded call, text, or other reasonable method.
- Maintain compliance with all statutes, disclosures, licensing, and regulations applicable to wholesaling or property transactions in the relevant state.
- Assume sole responsibility for all cancellation fees if any purchase contract is terminated.

- Be responsible for complying with all applicable federal, state, and local laws, disclosures, licensing requirements, assignment and marketing-agreement requirements, and wholesaling regulations for each property submitted to DispoTree.

Universal Compliance Clause:

Wholesaler is solely responsible for complying with all applicable federal, state, and local laws, disclosures, licensing requirements, assignment requirements, marketing-agreement requirements, and wholesaling regulations for each property submitted to DispoTree. This includes, without limitation, any disclosure of intent to resell, disclosure of equitable interest, verification of record ownership, and any statutory requirements imposed by the jurisdiction where the property is located. Wholesaler acknowledges that DispoTree has no duty to advise, review, monitor, or confirm Wholesaler's legal compliance in any jurisdiction, and Wholesaler shall indemnify DispoTree from any liability arising from non-compliance.

Clarification of DispoTree's Role:

Any verification performed by DispoTree regarding assignability or marketability is solely for the purpose of third-party platform submission and shall not be interpreted as legal review, legal validation, or a determination of Wholesaler's compliance with applicable law.

ARTICLE II: TERM AND TERMINATION**Section 2.1 — Term**

This Agreement commences on the Effective Date and continues for six (6) months ("Initial Term"). It shall automatically renew for successive six (6)-month terms unless terminated pursuant to this Article.

Either Party may terminate upon thirty (30) days' prior written notice. Notwithstanding termination:

- Any property already posted on a third-party platform shall remain posted for the full platform-required listing duration.
- Wholesaler shall complete any sale that meets Wholesaler's stated criteria, even if termination occurs after listing.

Section 2.2 — Termination for Cause

Either Party may terminate immediately if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after written notice. DispoTree may terminate immediately upon evidence of fraud, unlawful activity, or misrepresentation by Wholesaler.

ARTICLE III: FEES AND PAYMENT

Section 3.1 — Service Fees

Wholesaler agrees to pay DispoTree:

- A flat fee or per-property fee as mutually agreed and specified here: [Insert Flat Fee or Per-Property Fee Amount].
- Fees are due and payable upon successful closing of each applicable property unless otherwise agreed in writing.

Section 3.2 — Additional Costs

Wholesaler shall bear all third-party platform fees and any expenses required for compliance, documentation, or regulatory adherence.

ARTICLE IV: INDEMNIFICATION & LIMITATION OF LIABILITY

Section 4.1 — Indemnification

Wholesaler agrees to indemnify, defend, and hold harmless DispoTree and its members, managers, officers, employees, agents, and affiliates from all claims, damages, costs, and liabilities arising from:

- Inaccurate or incomplete information provided;
- Non-compliance with platform rules;

- Violations of any applicable federal, state, or local laws;
- Improper or unlawful wholesaling practices.

Indemnification shall apply to the fullest extent permitted under Delaware law and shall survive termination indefinitely.

Section 4.2 — Limitation of Liability

To the fullest extent permitted under Delaware law:

- DispoTree's liability is limited to the total fees paid by Wholesaler during the six (6) months preceding the event giving rise to liability.
- DispoTree shall not be liable for any indirect, incidental, punitive, or consequential damages.
- These limitations represent a material term of this Agreement.

ARTICLE V: NON-CIRCUMVENTION

Wholesaler agrees that during the Term and for six (6) months thereafter, Wholesaler shall not:

- Circumvent DispoTree by engaging directly with any third-party platform introduced by DispoTree;
- Engage or transact with any buyer introduced by DispoTree without written consent.

The Parties agree these protections are reasonable and enforceable under Delaware law.

ARTICLE VI: CONFIDENTIALITY

Wholesaler shall maintain the confidentiality of all non-public information received from DispoTree, including business methods, platform partners, pricing, and strategies, and shall not disclose such information without written consent. These obligations survive termination.

ARTICLE VII: REPRESENTATIONS AND WARRANTIES

Wholesaler represents and warrants that:

- They have full legal authority to enter into this Agreement;
 - They hold valid and enforceable purchase agreements for properties submitted to DispoTree;
 - All beneficial interests in each purchase agreement have been fully disclosed;
 - They will not submit any property without confirming the seller's lawful ownership and Wholesaler's contractual authority.
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ARTICLE VIII: DISPUTE RESOLUTION

Any dispute shall first be submitted to good-faith mediation. If unresolved, the dispute shall be submitted to binding arbitration administered by the American Arbitration Association, to be conducted in New Castle County, Delaware.

Each Party shall bear its own attorney's fees unless awarded by the arbitrator.

ARTICLE IX: GENERAL PROVISIONS

Section 9.1 — Notices

Notices shall be delivered by certified mail, recognized courier, or email with confirmation of receipt to the addresses listed above. Notices are effective upon receipt.

Section 9.2 — Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflict-of-law principles.

Section 9.3 — Delaware LLC Liability Shield

Pursuant to 6 Del. C. § 18-303, DispoTree's members, managers, and officers shall have no personal liability for obligations of DispoTree.

Section 9.4 — No Fiduciary Duties

To the fullest extent permitted by Delaware law, no Party or individual associated with DispoTree owes fiduciary duties to Wholesaler except those expressly stated herein.

Section 9.5 — Non-Reliance Clause

Each Party acknowledges it is not relying on any representation, warranty, or statement not expressly set forth in this Agreement.

Section 9.6 — Severability

Invalid or unenforceable provisions shall not affect the remainder of the Agreement.

Section 9.7 — Force Majeure

No Party shall be liable for delays or failures caused by events beyond reasonable control.

Section 9.8 — Assignment

Wholesaler may not assign this Agreement without DispoTree's prior written consent.

Section 9.9 — Successors and Assigns

This Agreement binds and benefits the Parties and their permitted successors and assigns.

Section 9.10 — Survival

The following Articles survive termination: IV (Indemnification & Liability), V (Non-Circumvention), VI (Confidentiality), VIII (Dispute Resolution), IX (General Provisions), and X (Trademarks & Branding).

Section 9.11 — Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding the subject matter herein and supersedes all prior agreements, whether written or oral.

Section 9.12 — Electronic Execution

Signatures delivered electronically (including DocuSign or PDF) shall be deemed valid and enforceable.

ARTICLE X: USE OF TRADEMARKS, LOGOS, AND BRANDING

Section 10.1 – No Unauthorized Use of Third-Party Marks

Wholesaler acknowledges and agrees that it shall not use, reproduce, distribute, or display any trademarks, logos, trade names, service marks, or other brand identifiers (“Marks”) of DispoTree’s contractual partners or third-party platform providers (including, but not limited to, Hubzu, Xome, Equator, and other affiliated entities) without prior express written authorization from DispoTree and/or the applicable rights holder.

Section 10.2 – Misrepresentation and Misuse

Wholesaler shall not falsely suggest, imply, or state any partnership, endorsement, or affiliation with any third-party platform or service unless explicitly authorized in writing. Any promotional material, website, advertisement, social media post, or communication by Wholesaler referencing such Marks shall require prior written review and approval by DispoTree.

Section 10.3 – Indemnification

Wholesaler agrees to indemnify, defend, and hold harmless DispoTree and its contractual partners against all claims, damages, losses, costs, and liabilities (including attorneys’ fees) arising from or related to any unauthorized use or misuse of any third-party Marks by Wholesaler or its affiliates, agents, or contractors.

Section 10.4 – Third-Party Enforcement

Wholesaler understands that any trademark enforcement actions relating to misuse of third-party Marks shall be pursued by the trademark holder. However, DispoTree reserves the right to terminate this Agreement immediately upon confirmation of any such misuse.

Section 10.5 – Survival

The obligations under this Article X shall survive the termination of this Agreement.

SIGNATURES

DISPOTREE LLC

By: _____

Name: George Khalil

Title: Manager

Date: _____

WHOLESALE

By: _____

Name: _____

Title: _____

Date: _____